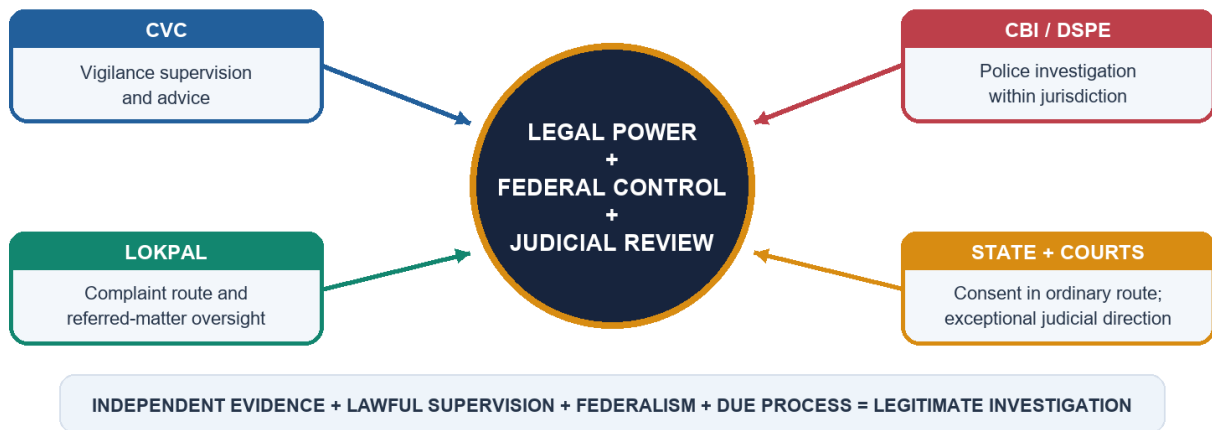


SOLVED PRACTICE WORKBOOK

Polity 37 — Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI)

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

RULE-BOUND ANTI-CORRUPTION ARCHITECTURE



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 37 — Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI)

PYQ, Practice and Solved Workbook

A. PYQ Routing Audit

[FACT] The local direct-owner and cross-cutting routing ledgers, topic owners, recent Polity packages and official papers were searched for CVC/CBI-linked questions.

Visual 71 — Verified PYQ Coverage

Year/paper	Question	Routing status	Treatment
2021 GS-II Q11	CBI jurisdiction, State consent and federal character	Verified cross-cutting Polity PYQ	Fully solved below
2026 Prelims GS-I Q63, Set A	Organisation-function-controlling Ministry matching	Verified official paper; provisional key only in local control ledger	Exact question reproduced; deliberately unsolved

Caption: No additional question is labelled as a direct verified PYQ merely because it is thematically similar.

[LIMIT] The 2026 key in the local audit trail is provisional and records no answer letter. This package neither infers an answer from a provisional count nor resolves individual rows indirectly.

B. Verified Mains PYQ — 2021 GS-II Q11

Question: “The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.” **15 marks | 250 words |**
Directive: Explain

Visual 72 — PYQ Demand Map

PART 1: Why State consent exists
DSPE sections 5-6 + State police field
|
PART 2: Why it is not absolute
SC/HC constitutional power + pending-case rule
|
PART 3: Federal evaluation
State autonomy + rights + judicial review
|
PART 4: Balanced conclusion
exceptional court power + cooperative protocols

Caption: The question asks for a qualified federal explanation, not a defence of either unlimited Union power or an absolute State veto.

Model Solution

The CBI is an executive-created organisation, while its core police powers arise from the Delhi Special Police Establishment Act, 1946. [FACT] Sections 5 and 6 reflect India’s federal structure: the Central Government may extend DSPE powers to a State area, but their ordinary exercise requires the State Government’s consent. This respects “police” and “public order” as State List subjects.

Consent may be general for defined classes of cases or case-specific. [FACT] A State may prospectively withdraw general consent, thereby requiring a fresh legal basis for new investigations. However, the veto is not absolute for three reasons.

First, [FACT] in *Kazi Lhendup Dorji v CBI* (1994), the Supreme Court held that later withdrawal did not terminate investigations validly commenced while consent operated; CBI could complete them and submit its police report.

Second, [FACT] in *State of West Bengal v Committee for Protection of Democratic Rights* (2010), a Constitution Bench held that High Courts under Article 226 and the Supreme Court under Article 32 may direct a CBI investigation without State consent. Such power flows from the Constitution, not section 6, and protects fundamental rights and judicial review. [LIMIT] The Court required sparing, cautious and exceptional use; routine transfer would itself erode federal balance and State-police responsibility.

Third, the precise terms and timing of consent matter. [FACT] *Fertico Marketing* (2020) reached a fact-specific result and cannot be converted into a universal rule that later consent always cures a defect.

[ANALYSIS] Thus, Indian federalism creates neither an unchecked central police nor an unreviewable State shield. The preferred equilibrium is State consent in the ordinary route, constitutional-court intervention in exceptional cases, and transparent Union-State protocols for investigations crossing jurisdictions.

Examiner Value Addition

- Use “qualified State veto,” not “State consent is irrelevant.”
- Name sections 5-6 before citing *CPDR*.
- Distinguish pending cases from new cases after withdrawal.
- End with cooperative federalism and rights-protecting judicial review.

C. Verified Prelims PYQ — 2026 GS-I Q63 (Controlled Unsolved)

63. With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1.	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2.	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3.	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Visual 73 — How to Audit a Matching Question Without Guessing

FOR EACH ROW, VERIFY THREE INDEPENDENT ELEMENTS

```

organisation identity
+
officially assigned function
+
current administrative ministry/department
=
row-level conclusion

```

Only then count correct rows.

Caption: A familiar function cannot compensate for a wrong ministry, and a correct ministry cannot compensate for an inaccurate mandate.

[LIMIT] **Resolution withheld:** the official paper wording is verified, but the available local answer-key control is provisional and contains no recorded answer letter. No option, count or row-wise conclusion is supplied here.

D. Original MCQs — 36 Questions

MCQ 1

Which statement most accurately describes the legal creation of the CBI?

A. It was established by a Government of India resolution in 1963, while DSPE police powers arise from the DSPE Act, 1946. B. It was constituted directly by Article 312 of the Constitution. C. It was created as a statutory body by the CVC Act, 2003. D. It was established by the Lokpal and Lokayuktas Act, 2013.

Answer: A.

Explanation: [FACT] CBI is an organisation created by the 1 April 1963 resolution. The DSPE Act constitutes the police establishment and supplies its central statutory powers.

MCQ 2

The Central Vigilance Commission consists of:

A. A Central Vigilance Commissioner and exactly three Vigilance Commissioners. B. A Central Vigilance Commissioner and not more than two Vigilance Commissioners. C. A Chairperson, one judicial member and one expert member. D. A Central Vigilance Commissioner alone.

Answer: B.

Explanation: [FACT] CVC Act section 3 specifies one CVC as Chairperson and not more than two VCs as Members.

MCQ 3

Who are members of the statutory committee recommending appointment of the Central Vigilance Commissioner?

A. Prime Minister, Chief Justice of India and Home Minister B. Prime Minister, Speaker of Lok Sabha and Lok Sabha Leader of Opposition C. Prime Minister, Home Minister and Lok Sabha Leader of Opposition/statutory substitute D. President, Prime Minister and Chief Justice of India

Answer: C.

Explanation: [FACT] CVC appointments use the PM-Home Minister-LoP committee. The CJI belongs to the CBI Director committee, not the CVC committee.

MCQ 4

Which is correct regarding CVC/VC tenure?

A. Five years with no age ceiling B. Six years or age 65, whichever is earlier C. Four years with automatic reappointment D. Four years or age 65, whichever is earlier

Answer: D.

Explanation: [FACT] The four-year/65 rule applies. A VC appointed CVC remains subject to the aggregate four-year cap.

MCQ 5

Removal of the CVC for proved misbehaviour or incapacity ordinarily requires:

A. Presidential reference, Supreme Court inquiry and presidential removal order B. A simple majority resolution of Lok Sabha C. Cabinet advice followed by immediate termination D. CVC selection committee recommendation alone

Answer: A.

Explanation: [FACT] Section 6 prescribes the Supreme Court inquiry route for proved misbehaviour or incapacity, distinct from listed direct statutory grounds.

MCQ 6

While supervising DSPE anti-corruption investigations, the CVC:

- A. May order conviction of a public servant
- B. Cannot require investigation or disposal of a particular case in a particular manner
- C. Replaces the trial court in evaluating evidence
- D. May exercise unlimited police power throughout India

Answer: B.

Explanation: [FACT] The section 8 proviso protects case-specific investigative judgment from dictated manner or result.

MCQ 7

If a covered organisation disagrees with CVC advice after an inquiry report, it must:

- A. Obtain Supreme Court approval
- B. Treat the advice as void without response
- C. Record reasons in writing and communicate them to CVC
- D. Refer every disagreement to Parliament

Answer: C.

Explanation: [FACT] CVC advice is not automatically binding, but section 17 requires written reasons for disagreement.

MCQ 8

The CVC's annual report:

- A. Is sent only to DoPT and remains confidential by statute
- B. Is submitted directly to the Supreme Court
- C. Excludes all reference to DSPE functioning
- D. Is presented to the President and laid before both Houses, with a separate relevant DSPE part

Answer: D.

Explanation: [FACT] Section 14 creates the annual reporting and parliamentary-laying mechanism.

MCQ 9

Under DSPE Act section 2, the baseline territorial police powers of DSPE apply to:

- A. Union Territories
- B. All States automatically
- C. Foreign territories
- D. Only railway property

Answer: A.

Explanation: [FACT] The State-area route is built through sections 5-6; Union Territories are the section 2 baseline.

MCQ 10

The classes of offences to be investigated by DSPE are specified by:

- A. Every State Governor independently
- B. The Central Government by notification under section 3
- C. The CVC through an annual report
- D. The Lok Sabha Speaker

Answer: B.

Explanation: [FACT] Section 3 is the notified-offence gate; organisational importance alone does not create offence jurisdiction.

MCQ 11

Which correctly states the DSPE superintendence split?

A. CVC supervises every CBI function, including INTERPOL administration. B. Central Government supervises every PC Act investigation without limitation. C. CVC supervises relevant PC Act investigations; Central Government supervises other DSPE matters, subject to special law. D. State Governments jointly supervise all CBI cases.

Answer: C.

Explanation: [FACT] DSPE Act section 4 divides superintendence by subject and remains subject to special provisions such as the Lokpal Act.

MCQ 12

CBI's administrative placement under DoPT necessarily means:

A. CVC has no statutory role B. State consent is unnecessary C. Every investigation is unconstitutional D. Administrative placement alone does not prove lawful case-specific PMO direction

Answer: D.

Explanation: [ANALYSIS] Administration and investigative judgment are distinct. Any interference claim needs evidence and legal analysis.

MCQ 13

The high-powered committee recommending appointment of the CBI Director includes:

A. Prime Minister, Lok Sabha LoP/substitute, and CJI or CJI nominee B. Prime Minister, Home Minister and CVC C. President, CVC and Attorney General D. Cabinet Secretary, Home Secretary and CJI

Answer: A.

Explanation: [FACT] This is the present section 4A committee. It should not be confused with the CVC appointment committee.

MCQ 14

The statutorily protected minimum tenure of the CBI Director is:

A. One year B. Two years C. Three years D. Five years

Answer: B.

Explanation: [FACT] Section 4B creates a two-year floor; five years is only the aggregate maximum after conditional extensions.

MCQ 15

Under the 2021 DSPE amendment, a Director's extension:

A. Is automatic until five years B. May be granted for any period by DoPT alone C. Requires public interest, committee recommendation and recorded reasons, one year at a time D. Can continue without an aggregate ceiling

Answer: C.

Explanation: [FACT] The conditions are cumulative and the aggregate period cannot exceed five years.

MCQ 16

Transfer of the CBI Director during protected tenure requires:

A. CVC advice only B. State consent C. Parliamentary approval D. Prior consent of the section 4A committee

Answer: D.

Explanation: [FACT] The committee safeguard also informed the Supreme Court's substance-based reasoning in *Alok Verma*.

MCQ 17

Which best distinguishes general and case-specific State consent?

A. General consent is standing for defined classes; case-specific consent is tied to a named case/facts. B. General consent comes from courts; specific consent comes from Parliament. C. General consent applies only to Union Territories. D. There is no legal difference.

Answer: A.

Explanation: [FACT] Scope, conditions and timing of the consent instrument determine its effect.

MCQ 18

According to *Kazi Lhendup Dorji*, withdrawal of consent:

A. Retrospectively voids every act of investigation B. Does not automatically terminate investigations validly begun before withdrawal C. Gives CBI permanent jurisdiction over all future State cases D. Removes the need for a police report

Answer: B.

Explanation: [FACT] The rule is prospective and must not be enlarged into a general future-investigation power.

MCQ 19

The *CPDR* Constitution Bench held that:

A. State consent is never required under section 6 B. Parliament alone may order a CBI investigation C. SC/HC may exceptionally direct CBI investigation without State consent under Articles 32/226 D. Every allegation against State police must go to CBI

Answer: C.

Explanation: [FACT] Constitutional judicial review supplies a separate route, to be used sparingly and cautiously.

MCQ 20

The safest reading of *Fertico Marketing* is:

A. Consent defects are always irrelevant B. Later consent is constitutionally prohibited C. CBI may investigate any State employee without authority D. Its result was fact-specific and does not establish that later consent always cures absence of consent

Answer: D.

Explanation: [FACT] The consent rider, manner in which State servants emerged, later consent and pleaded prejudice were material.

MCQ 21

The 2024 Supreme Court judgment in *State of West Bengal v Union of India* cited here:

A. Rejected a preliminary maintainability objection but did not decide merits B. Finally upheld every challenged CBI investigation C. Abolished section 6 consent D. Declared CBI unconstitutional

Answer: A.

Explanation: [FACT] The Court expressly limited the decision to the preliminary objection.

MCQ 22

The central principle of *Alok Kumar Verma* for Director protection is:

A. Only a written transfer order can affect tenure B. Divesting powers may have transfer-equivalent effect and cannot evade committee protection C. The Director is immune from all supervision D. The President alone selects the Director

Answer: B.

Explanation: [FACT] The Court focused on the substance and effect of the action.

MCQ 23

Dr Jaya Thakur (2023) held that:

A. The 2021 amendment was wholly unconstitutional B. Every Director is entitled to five years C. The extension framework is valid, but its statutory conditions must govern each extension D. Written reasons are unnecessary

Answer: C.

Explanation: [FACT] Validity of the framework and legality of a particular extension are separate inquiries.

MCQ 24

The “caged parrot” phrase should be used in an answer as:

A. The text of DSPE Act section 4 B. A binding test invalidating all CBI reports C. Proof of interference in every case D. Judicial criticism/context, with enforceable safeguards traced to actual statutes and holdings

Answer: D.

Explanation: [LIMIT] The metaphor captures a legitimacy concern; it is not a substitute for ratio or proof.

MCQ 25

Under Lokpal Act section 20, complaints selected for preliminary inquiry concerning Group A-D public servants are routed:

A. To CVC in the manner specified by the Act B. Directly to Parliament C. Only to State police D. Automatically to ED

Answer: A.

Explanation: [FACT] The Act then distinguishes how CVC handles Group A-B and Group C-D matters.

MCQ 26

Which is correct after *Thommandru Hannah Vijayalakshmi*?

A. PE is an enforceable right of every accused. B. PE is not mandatory before every corruption FIR; a Regular Case may be directly registered when cognizable offence information is disclosed. C. CBI can never use source information. D. A PE must determine guilt.

Answer: B.

Explanation: [FACT] PE remains useful in an appropriate case but is not a compulsory precondition or a defence entitlement.

MCQ 27

Which institution finally determines criminal guilt?

A. CVC B. CBI C. The competent court after due process D. CVO

Answer: C.

Explanation: [FACT] Investigation and advice produce inputs; adjudication and conviction belong to the court.

MCQ 28

Which statement correctly separates CBI and ED?

A. ED is a wing of CBI. B. CBI exercises every power under PMLA. C. ED needs State consent under DSPE section 6 for every PMLA action. D. CBI may investigate a competent predicate offence, while ED separately exercises PMLA powers over money laundering.

Answer: D.

Explanation: [FACT] Overlapping facts do not merge statutory mandates.

MCQ 29

NIA differs from CBI primarily because NIA:

A. Operates under the NIA Act's scheduled-offence architecture B. Is supervised by CVC for every case C. Was created by the 1963 CBI resolution D. Has no police powers

Answer: A.

Explanation: [FACT] The NIA Act supplies a distinct central-investigation route for scheduled offences.

MCQ 30

A departmental CVO is best understood as:

A. The final criminal court B. An internal vigilance node connecting preventive/disciplinary work with the CVC framework C. A constitutional authority superior to CVC D. A general police station

Answer: B.

Explanation: [FACT] CVOs assist vigilance administration but do not acquire the full police powers of DSPE.

MCQ 31

Which reform best combines independence with accountability?

A. Complete secrecy with no reporting B. Unlimited executive power to transfer investigators C. Transparent case-allocation safeguards plus protected operational confidentiality and audit D. Abolition of all judicial review

Answer: C.

Explanation: [ANALYSIS] Insulation must coexist with lawful review, reason-giving and aggregate reporting.

MCQ 32

Which statement on State consent is most accurate?

A. It is absolute even against a High Court order. B. It is irrelevant because CBI is a Union agency. C. It applies only to economic offences. D. It governs the ordinary DSPE State-area route but is qualified by constitutional-court power and precedent on pending cases.

Answer: D.

Explanation: [FACT] This formulation preserves both section 6 federalism and judicial review.

MCQ 33

CVC's inquiry-related civil-court powers include:

- A. Summoning persons and requiring document production B. Sentencing an accused to imprisonment C. Registering every FIR in India D. Overriding a trial judgment

Answer: A.

Explanation: [FACT] Procedural powers for inquiry do not make CVC a criminal court.

MCQ 34

Which statement about the CBI Director of Prosecution is correct?

- A. The post is filled by State Governors. B. Central Government appoints on CVC recommendation, and the officer works under overall supervision and control of the CBI Director. C. The officer appoints the CBI Director. D. The post has no statutory tenure protection.

Answer: B.

Explanation: [FACT] DSPE Act section 4BA also provides a minimum two-year tenure.

MCQ 35

For DSPE posts of Superintendent of Police and above, the CVC-chaired committee:

- A. Conducts criminal trials B. Replaces the section 4A Director committee C. Recommends appointment and tenure-related decisions after consulting the Director D. Requires approval from every State

Answer: C.

Explanation: [FACT] Section 4C creates this separate senior-personnel mechanism.

MCQ 36

For a Mains answer on CBI federalism, the strongest structure is:

- A. Begin and end with the "caged parrot" phrase B. List allegations without law C. State that either Union or States have absolute power D. Claim -> sections 5-6 -> named cases -> federal analysis -> qualified reform

Answer: D.

Explanation: [ANALYSIS] The structure converts description into authority-backed evaluation.

E. Remedial MCQs — 12 Questions

Remedial MCQ 1

A student writes: "CBI is a statutory body created by the DSPE Act." What is the best correction?

- A. CBI was created by the 1963 resolution; DSPE is the statutory police establishment under the 1946 Act. B. CBI is a constitutional body. C. CBI was created by the CVC Act. D. The statement is fully correct.

Answer: A.

Explanation: Separate organisation from statutory police establishment.

Remedial MCQ 2

"CVC superintendence" permits CVC to:

- A. Write the final judgment B. Supervise relevant processes but not dictate a particular case's investigation or disposal manner C. Ignore the section 8 proviso D. Order automatic conviction

Answer: B.

Explanation: The case-dictation prohibition is a central independence safeguard.

Remedial MCQ 3

Which proposition correctly follows from *Kazi Lhendup Dorji*?

A. Consent can never be withdrawn. B. Withdrawal authorises all new CBI cases. C. Withdrawal does not retrospectively terminate investigations validly begun under earlier consent. D. State police cease to exist.

Answer: C.

Explanation: The holding protects continuity of already instituted investigations, not unlimited future jurisdiction.

Remedial MCQ 4

A High Court orders CBI investigation without State consent in an exceptional rights case. The authority comes from:

A. Deemed general consent B. DoPT administrative control C. CVC annual report D. Article 226 constitutional power as recognised in *CPDR*

Answer: D.

Explanation: Court direction is not a disguised section 6 consent route.

Remedial MCQ 5

Which condition belongs to the 2021 Director-extension framework?

A. One-year-at-a-time extension on committee recommendation, public interest and recorded reasons B. Automatic five-year tenure from day one C. Oral reasons by DoPT alone D. No aggregate ceiling

Answer: A.

Explanation: Every annual extension requires statutory satisfaction; five years is only the aggregate maximum.

Remedial MCQ 6

For a Lokpal-referred DSPE investigation, the Lokpal:

A. Decides guilt itself B. Has special statutory superintendence but cannot dictate investigation/disposal in a particular manner C. Becomes the State police chief D. Abolishes CVC

Answer: B.

Explanation: Section 25 combines special supervision with an express non-dictation safeguard.

Remedial MCQ 7

An FIR by CBI means:

A. Conviction is certain B. CVC has imposed a penalty C. The formal investigation threshold is crossed, not that guilt is proved D. State consent can never be questioned

Answer: C.

Explanation: Allegation, FIR, charge sheet and conviction are different stages with different thresholds.

Remedial MCQ 8

Why does this package not state how many States currently withhold general consent?

A. State consent is irrelevant. B. No State can withdraw it. C. Such data can never be published. D. The count is transient and must be verified against a date-specific official source.

Answer: D.

Explanation: [LIMIT] Durable notes should not freeze a volatile number without live official evidence.

Remedial MCQ 9

When a covered organisation disagrees with CVC advice, the accountability device is:

- A. Written reasons communicated to CVC B. Automatic imprisonment C. A fresh constitutional amendment D. State consent

Answer: A.

Explanation: Reason-giving enables institutional scrutiny while preserving competent-authority responsibility.

Remedial MCQ 10

Which trio belongs to the CBI Director selection committee?

- A. PM, Home Minister, CVC B. PM, Lok Sabha LoP/substitute, CJI/nominee C. President, Speaker, Attorney General D. CVC, CAG, UPSC Chairperson

Answer: B.

Explanation: Do not import the CVC appointment committee into DSPE section 4A.

Remedial MCQ 11

Which pairing is correct?

- A. ED — DSPE Act B. NIA — PMLA C. CBI/DSPE — notified offences and DSPE jurisdiction; ED — PMLA money-laundering field D. CVC — general criminal trial

Answer: C.

Explanation: Each body's power must be traced to its own governing law.

Remedial MCQ 12

Who gives the final determination of criminal guilt?

- A. Media B. CBI Director C. CVC D. Competent court

Answer: D.

Explanation: The presumption of innocence continues through investigation and prosecution.

Visual 74 — MCQ Rotation Audit

Original MCQs 1-36:

A B C D | A B C D | A B C D | A B C D | A B C D
| A B C D | A B C D | A B C D | A B C D

Remedials 1-12:

A B C D | A B C D | A B C D

Continuous total:

48 markers = (A B C D) repeated 12 times

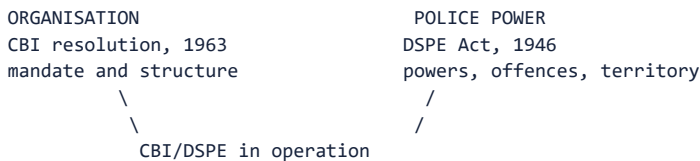
Caption: The correct option never repeats consecutively and the rotation continues across the original/remedial boundary.

F. Original Solved Mains Practice — 8 Questions

Solved Mains 1 — 10 Marks / 150 Words

“The CBI’s organisational birth and its investigative powers arise from different legal instruments.” Explain.

Visual 75 — Two-Layer Thesis



Caption: The distinction prevents the common error of calling CBI itself a statutory body created by the DSPE Act.

Model solution:

The Central Bureau of Investigation is a Union investigative organisation, but its legal identity is hybrid.

[FACT] The Government of India established CBI through a Home Ministry resolution dated 1 April 1963. The resolution organised a wider bureau covering investigation and anti-corruption, economic offences, special crimes and related work. Therefore, no standalone “CBI Act” created the organisation.

[FACT] Its core police powers are principally exercised through the Delhi Special Police Establishment constituted under the DSPE Act, 1946. Section 2 supplies the Union Territory baseline; section 3 requires notified offence classes; sections 5-6 govern extension to State areas and State consent. The DSPE Act also provides the superintendence, Director-selection, tenure and senior-appointment architecture.

[ANALYSIS] Thus, executive creation explains organisational form, while statute supplies coercive authority and limits. An executive resolution cannot by itself override federal consent, criminal procedure or judicial safeguards.

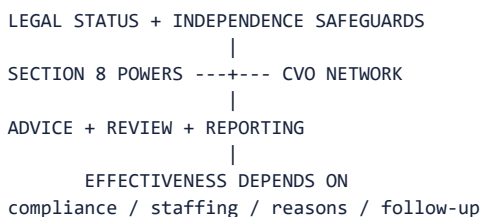
[LIMIT] Calling CBI “non-statutory” should not imply that its investigators act without statutory power. The precise formulation is: **CBI is executive-created; DSPE police powers are statutory.**

Conclusion: A dedicated CBI law may improve institutional clarity, but until enacted, answers must preserve this two-layer legal identity.

Solved Mains 2 — 15 Marks / 250 Words

Examine whether the CVC is an effective “apex vigilance institution” despite being primarily advisory and supervisory.

Visual 76 — CVC Effectiveness Test



Caption: Formal power creates capacity; organisational compliance converts capacity into outcome.

Model solution:

The CVC Act, 2003 makes the Central Vigilance Commission the statutory apex of the Union vigilance framework, but not a general anti-corruption police force.

[FACT] Its institutional strength lies in a multi-member Commission, committee-based presidential appointment, fixed tenure, protected removal, post-tenure employment restrictions, expenditure charged on the Consolidated Fund of India and annual reporting to Parliament.

Operationally, [FACT] section 8 gives CVC superintendence over DSPE investigations under the Prevention of Corruption Act, constrained direction power, complaint/reference inquiry routes, review of investigations and prosecution-sanction applications, advice to covered central organisations and supervision of vigilance administration. Through CVOs, it can combine preventive vigilance with departmental follow-up.

However, its model is deliberately bounded. It cannot dictate how a named case must be investigated or disposed of, conduct every criminal investigation itself, impose criminal guilt, or operate as a universal ombudsman. [FACT] Its advice is not automatically binding; the organisation may disagree after recording and communicating reasons.

[ANALYSIS] Advisory status is not necessarily weakness. It preserves departmental responsibility and avoids merging investigator, prosecutor and adjudicator. Yet effectiveness falls when reasons are formulaic, appointments or staffing are delayed, CVOs lack functional independence, prosecution sanction is slow, or aggregate reporting does not produce legislative scrutiny.

Way forward: strengthen time-bound reasoned compliance, professional CVO protection, digital vigilance analytics, public aggregate reporting and follow-up audit, while retaining the prohibition on case-specific dictation.

Conclusion: CVC is structurally significant but outcome-dependent—an oversight hub whose credibility rests on the quality of advice, compliance and transparent institutional response.

Solved Mains 3 — 15 Marks / 250 Words

Analyse the constitutional and statutory limits on State power to deny CBI jurisdiction.

Visual 77 — Qualified State Veto

ORDINARY ROUTE	QUALIFICATIONS
DSPE ss.5-6	pending valid cases
State-area extension	SC Article 32
+ State consent	HC Article 226
+-----	-----+
FEDERAL BALANCE	

Caption: State consent is legally meaningful but not superior to constitutional judicial review.

Model solution:

State control over police and public order is a core federal feature. The DSPE Act translates that feature into an ordinary territorial gate for CBI/DSPE investigations.

[FACT] Section 5 authorises the Central Government to extend DSPE powers to a State area, while section 6 requires the State Government's consent. Consent may be general for defined categories or specific to a case. A State may prospectively withdraw general consent, ordinarily requiring fresh authority for new investigations.

The power is nevertheless qualified. First, [FACT] *Kazi Lhendup Dorji v CBI* held that withdrawal did not retrospectively terminate investigations validly begun when consent existed. The agency could complete investigation and submit the police report.

Second, [FACT] the Constitution Bench in *State of West Bengal v CPDR* held that the Supreme Court and High Courts may direct a CBI probe without State consent under Articles 32 and 226. Such authority arises from constitutional judicial review and protection of fundamental rights, not from a fiction of consent. [LIMIT] The power must be used sparingly, cautiously and exceptionally, so State police are not routinely displaced.

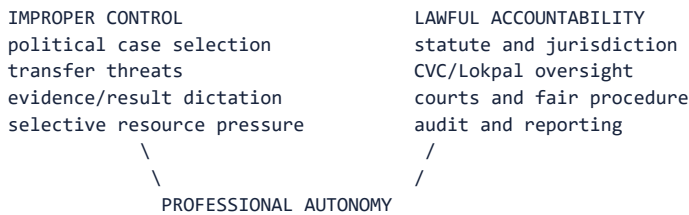
Third, consent disputes remain fact-sensitive. [FACT] *Fertico Marketing* cannot be generalised into an automatic post-facto cure. Likewise, the 2024 *West Bengal v Union* ruling cited here rejected only a maintainability objection and did not settle merits.

[ANALYSIS] An absolute State veto could shield rights violations; an unchecked Union police could undermine the State List. Federalism therefore requires a rule-bound ordinary consent route, exceptional judicial correction and cooperative protocols for inter-jurisdictional crime.

Conclusion: The State's power is substantial, prospective and federal—but neither retrospective over every pending case nor immune from constitutional review.

“The central challenge is not to make CBI unaccountable to government, but to make investigation independent of improper control while keeping the agency answerable to law.” Critically analyse.

Visual 78 — Insulation with Answerability



Caption: Institutional design must remove outcome manipulation without creating a secret, self-judging police authority.

Model solution:

CBI occupies a difficult constitutional position: it handles nationally significant investigations, yet its organisation is executive-created, its administration lies within the Union executive and its State-area powers are federally conditioned.

Several safeguards support independence. [FACT] *Vineet Narain* led to statutory CVC supervision over PC Act investigations, a protected minimum tenure and committee-based appointment/transfer safeguards. DSPE section 4A disperses Director selection across the Prime Minister, Opposition and judiciary. Section 4B protects a two-year minimum and requires committee consent for transfer. [FACT] *Alok Verma* prevented evasion of this protection through transfer-equivalent divestment of powers. The 2021 extension regime requires public interest, committee recommendation, written reasons and annual renewal within a five-year aggregate ceiling.

Yet vulnerabilities remain. [ANALYSIS] Executive influence may operate through staffing, deputation, budget, promotion, selective references or public narratives even without a written direction. State-consent withdrawals can fragment investigations. Sanction delays and vacancies can weaken timelines. Perceived selective use damages public trust even where evidence in a particular case is sound.

However, complete insulation from government would be constitutionally undesirable. Police power requires legal jurisdiction, financial audit, service regulation, prosecution scrutiny and judicial review. CVC and Lokpal superintendence are themselves bounded: neither may dictate a particular case result. Parliament must receive system-level information, while courts ensure due process and the accused retains the presumption of innocence.

Reform should therefore:

1. enact a debated CBI law defining organisation, mandate and accountability;
2. protect a professional multidisciplinary cadre and functional budget;
3. make case allocation, recusals and transfer reasons auditable;
4. develop statutory-consistent federal consent protocols;
5. strengthen aggregate parliamentary reporting without prejudicing live cases; and
6. penalise unlawful interference while preserving lawful supervision.

Conclusion: The goal is neither “CBI under command” nor “CBI beyond control,” but **operationally insulated, legally bounded and publicly accountable investigation.**

Solved Mains 5 — 10 Marks / 150 Words

Differentiate the roles of Lokpal, CVC, CBI and departmental CVOs in processing corruption allegations.

Visual 79 — Role-to-Output Chain

LOKPAL	-> complaint route and statutory directions
CVC	-> vigilance supervision, advice and referral
CBI/DSPE	-> police investigation and final report
CVO	-> departmental vigilance and preventive control
COURT	-> guilt determination

Caption: Complementarity arises because each institution produces a different legal output.

Model solution:

The four institutions form an interconnected but non-hierarchical anti-corruption network.

[FACT] Lokpal receives complaints against persons covered by the Lokpal Act. It may order preliminary inquiry or investigation through its Inquiry Wing or an agency including DSPE. Section 20 routes specified Group A-D preliminary inquiries to CVC, and section 25 gives Lokpal special superintendence over DSPE matters referred by it.

[FACT] CVC is the apex Union vigilance institution. It supervises relevant DSPE anti-corruption investigations, reviews investigation and sanction progress, advises covered organisations and oversees vigilance administration. It cannot dictate a named case's manner of disposal.

[FACT] CBI/DSPE exercises police powers: registration, evidence collection, searches/arrests where lawful and submission of charge sheet or closure report.

CVOs are departmental nodes for preventive vigilance, complaint examination, system correction and disciplinary coordination.

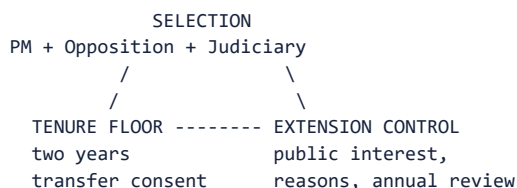
[ANALYSIS] The institutions are complementary because complaint scrutiny, vigilance advice, police investigation, prosecution and adjudication require different safeguards.

Conclusion: Treating one as the universal superior of the others obscures statutory routes and produces incorrect UPSC answers.

Solved Mains 6 — 15 Marks / 250 Words

Discuss how the appointment and tenure architecture of the CBI Director attempts to reconcile continuity with democratic accountability.

Visual 80 — Director Safeguard Triangle



Caption: Selection dispersion, tenure security and conditional continuation address different risks.

Model solution:

Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.

[FACT] DSPE Act section 4A requires appointment by the Central Government on recommendation of a committee comprising the Prime Minister, Lok Sabha Leader of Opposition—or statutory substitute—and Chief Justice of India or nominee. The cross-institutional design reduces unilateral appointment.

[FACT] A CVC-chaired committee prepares the eligible IPS panel on seniority, integrity and anti-corruption investigation experience, considering the outgoing Director's views. Section 4B then provides a minimum two-year tenure and requires prior section 4A committee consent for transfer.

The judiciary has protected the substance of tenure. [FACT] *Alok Kumar Verma* treated divestment of powers as having transfer-like effect and required committee consideration.

The 2021 amendment introduced conditional continuation beyond the initial tenure: [FACT] each extension must be in public interest, based on section 4A committee recommendation, supported by written reasons, granted one year at a time and remain within an aggregate five-year ceiling. *Dr Jaya Thakur* upheld this framework.

[ANALYSIS] The design creates continuity but raises two concerns: repeated annual extensions may create perceived dependence on reappointment, and “public interest” can become formulaic unless reasons receive genuine scrutiny.

Reform: publish non-sensitive reasons, initiate succession planning early, maintain objective performance criteria and preserve judicial review.

Conclusion: The two-year floor protects independence; committee-based, reasoned annual extension protects accountability. Neither the floor nor the ceiling is a personal entitlement.

Solved Mains 7 — 15 Marks / 250 Words

Compare CBI with ED, NIA and State anti-corruption agencies. Why is legal-domain separation essential?

Visual 81 — Domain Separation

CBI/DSPE -> notified corruption/economic/special crimes
ED -> FEMA/PMLA enforcement and money laundering
NIA -> NIA Act scheduled offences
State ACB-> State-public-servant corruption / State police field

Same transaction can create parallel lawful proceedings,
but no agency inherits another statute's powers.

Caption: Factual overlap allows coordination; it does not erase jurisdictional boundaries.

Model solution:

India's enforcement system is functionally specialised rather than organised around a single national police body.

[FACT] CBI is an executive-created organisation whose core police powers come through the DSPE Act. It handles notified anti-corruption, economic and selected special-crime work, subject to territorial consent or court-order rules.

ED is a separate Union agency operating under FEMA and the Prevention of Money Laundering Act. Its money-laundering, attachment and related powers cannot be attributed to CBI merely because CBI investigates economic offences.

NIA operates under the NIA Act's scheduled-offence and national-security architecture. Its central assumption of investigation follows a different statute and cannot be used to explain DSPE section 6.

State ACBs/vigilance police ordinarily investigate corruption involving State public servants under State police jurisdiction and applicable criminal law. They are not subordinate branches of CBI.

[ANALYSIS] A single transaction may involve bribery, corporate fraud, a scheduled offence and laundering of proceeds. Parallel agencies may therefore act, but each needs its own offence nexus, territorial authority and procedure. Domain separation:

- protects federalism and legality;
- prevents forum shopping and duplicated coercion;
- clarifies evidence-sharing and prosecution responsibility;
- enables judicial review of each power; and
- helps the accused and public understand legal thresholds.

Way forward: create formal inter-agency coordination protocols, common digital evidence standards and lead-agency rules while preserving statutory independence.

Conclusion: Coordination should connect jurisdictions, not collapse them. The correct question is never “which agency is strongest?” but “which statute authorises which act?”

Propose a reform framework for CVC-CBI that strengthens anti-corruption effectiveness without weakening federalism, due process or parliamentary accountability.

Visual 82 — Reform Architecture



Caption: Durable reform aligns mandate, capacity, federal consent, due process and public accountability.

Model solution:

Anti-corruption reform must address both ineffective investigation and misuse of investigative power. A stronger CBI without federal or rights safeguards may centralise coercion; a stronger consent veto without accountability may obstruct serious cases.

1. Clear legislative mandate: [ANALYSIS] Parliament should debate a dedicated CBI law defining organisational status, offence domain, internal allocation, appointment machinery, protected functional budget, reporting and unlawful-interference offences. It must preserve DSPE section 6 principles and constitutional-court powers.

2. Professional capacity: Build a stable multidisciplinary cadre in policing, forensic accounting, cyber evidence, procurement and prosecution. Deputation should remain available for diversity but should not create chronic dependence. Fixed investigator tenures and documented transfers can protect continuity.

3. Federal protocol: Union and States should adopt a legally consistent model for general/case-specific consent, time-bound requests, reasons, joint teams and evidence transfer. [LIMIT] An executive protocol cannot override sections 5-6; it can only make their exercise predictable.

4. CVC effectiveness: Strengthen CVO functional protection, sanction-delay dashboards, preventive-vigilance analytics, reasoned disagreement with CVC advice and follow-up audits. Preserve the statutory bar on directing a case's particular result.

5. Transparent investigation governance: Use auditable case allocation, written recusals, conflict registers and non-sensitive publication of policy criteria. Operational secrecy should protect evidence and witnesses, not hide arbitrary selection.

6. Due process: Ensure jurisdictional review, section 17A/19 compliance where applicable, time-bound PE/FIR decisions, disclosure obligations, presumption of innocence and effective judicial remedies. Investigative speed cannot substitute for evidentiary quality.

7. Parliamentary accountability: CVC's annual report should present comparable aggregate indicators on investigation stages, sanction delays, systemic risks and action on advice. Committees may scrutinise institutions without demanding prejudicial detail from live cases.

8. Independent review: Periodic expert review of institutional design and public reporting can test whether safeguards reduce both delay and interference.

Conclusion: The reform objective is a **federal, professional and rights-bound national investigation capacity**—independent in evidence and case judgment, accountable in jurisdiction, resources, reasons and outcomes.